

**JUDGMENT SHEET
IN THE LAHORE HIGH COURT, LAHORE.
JUDICIAL DEPARTMENT**

Crl. Revision No. 39743 of 2024

Shiraz Ahmad ...Vs... The State, etc.

JUDGMENT

Date of hearing: 14.05.2025.

Petitioner by: Sh. Usman Karim-ud-Din, Advocate

State by: Syed Muhammad Farhad Tirmizi, Deputy Attorney General, and Mr. Razaqat Ali Dogar, Deputy Attorney General, with Naveed S.I/F.I.A.

Complainant By: Mr. Muhammad Nawaz Sh., Advocate.

Aalia Neelum, C.J.- This criminal revision under section 435 Cr.P.C. read with section 439 Cr.P.C. is directed against the order dated 15.05.2024 passed by the learned Additional Sessions Judge, Lahore, whereby charge under sections 295-A, 295-B, 295-C and section 11 PECA was framed against the petitioner and the application filed by the petitioner to follow the directions of Honorable Supreme Court of Pakistan contained in “**Tahir Naqash vs The state**” (PLD 2022 SC 385) and “**Mubarak Ahmad Sani vs The State**” (2024 SCP 60), while framing the charge against the accused, was disposed of.

2. The facts of the case are that the petitioner, along with others, was facing trial in case FIR No. C-88 dated 20.06.2019, registered under sections 295-A, 295-B, and 298-C of the Pakistan Penal Code, 1860, read with section 11 of the Prevention of Electronic Crimes Act, 2016 (hereinafter referred to as PECA, 2016). During the pendency of the trial, the petitioner's counsel filed an application to follow the directions of the Honorable Supreme Court of Pakistan contained in “Tahir Naqash vs The

state” (PLD 2022 SC 385) and “Mubarak Ahmad Sani vs The State” (2024 SCP 60) while framing the charge against the accused. However, by order dated 15.05.2024, the trial court disposed of the application and framed charges against the petitioner and his co-accused under sections 295-A, 295-B, 295-C, and section 11 of PECA. Hence, this criminal revision.

3. Arguments advanced by both sides have been heard, and the record has been minutely perused.

4. At the stage of framing charges, the court must focus only on materials collected during the investigation that can be legally translated into evidence, rather than on any additional evidence the prosecution may present during the trial, which begins only after the charges are framed and the accused denies them. The trial judge is not merely a post office to frame the charge at the instance of the prosecution. The judge must sift through the evidence to determine whether sufficient grounds exist for proceeding. Evidence includes the statements recorded by the police or the documents submitted before the court. At the time of framing the charges, the probative value of the material on record cannot be assessed, and the material presented by the prosecution must be accepted as true. The purpose of framing a charge is to inform the accused of the clear, unambiguous, and precise nature of the accusation they will confront during the trial. At this stage, the court is concerned not with proving the allegation but rather with evaluating the material and forming an opinion as to whether there is a strong suspicion that the accused has committed an offence, which, if put to trial, could prove their guilt. The framing of the charge is not a stage at which the final test of guilt is applied. The citations relied upon by the learned counsel for the petitioner do not apply to the facts of the instant case.

5. For the reasons stated above, this court is satisfied that there is no ground for accepting this petition, as the learned court below has not

committed any illegality or irregularity in its order. The impugned order requires no interference in the exercise of inherent powers.

6. Given the above, the petition in hand is dismissed without costs.

(AALIA NEELUM)
CHIEF JUSTICE

Approved for reporting

Chief Justice

This order was dictated,
pronounced, prepared, and
signed on May 14, 2025.

*Ikram**